

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 5	24CV446068	Marilyn Evans et al vs Stanford Health Care et al	Demurrer OFF CALENDAR - MOTION WITHDRAWN on July 28, 2026 by moving party Stanford Health Care. On July 24, 2026, plaintiff Gary Evans filed a request to dismiss the loss of consortium claim. Upon filing and entry of the dismissal, the demurrer to the second cause of action of the First Amended Complaint for loss of consortium is rendered moot.
LINE 6	25CV483365	Jennifer Voges et al vs Huiqiong Deng et al	Demurrer Scroll down to Line 6 for Tentative Ruling.
LINES 7-8	26CV493764	James Souza III vs Victoria Garcia	Motion to Quash (Line # 7) and Demurrer (Line #8) Scroll down to Lines 7-8 for Tentative Ruling.

- 00000 -

9:01 A.M.			
LINE 1	23CV424189	Facchino/LaBarbera Tennant Station, LLC vs Adrian Little et al	Order of Examination Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 2

Case Name Emilia Arroyo vs Juan Manuel Salas, Jr.

Case No. 23CV416906

Demurrer

Before the court is cross-defendant's demurrer to cross-complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

A. FIRST AMENDED COMPLAINT ¹

Defendant Juan Salas, Jr. ("Salas") is plaintiff Emilia Arroyo's ("Arroyo") son. (First Amended Complaint ("FAC"), ¶¶2 – 3).

Defendant Salas was born in February 1980. (FAC, ¶6). In his 20s, defendant Salas lived in an apartment in San Jose, California. (*Id.*). Plaintiff Arroyo lived in Palm Springs at the time and supported defendant Salas by paying the rent for his apartment. (*Id.*).

In summer 2009, plaintiff Arroyo decided it would be better to buy a house and pay a mortgage than pay defendant Salas's rent. (FAC, ¶7). In October 2009, plaintiff Arroyo purchased a home located at 7310 Pittsfield Way in San Jose, California for \$422,000.00 ("Subject Property"). (*Id.*). Plaintiff Arroyo paid \$12,600.00 for the downpayment and financed the balance with a mortgage loan in both her name and defendant Salas's name. (*Id.*). Title to the Subject Property was held by plaintiff Arroyo and defendant Salas, but the parties understood and intended for plaintiff Arroyo to make all payments towards the loan and pay all other expenses associated with the Subject Property including property taxes and utilities. (FAC, ¶¶7 – 8).

While living at the Subject Property, defendant Salas had a roommate who paid \$500.00 per month, but plaintiff Arroyo received no portion of those payments. (FAC, ¶9).

In 2014, plaintiff Arroyo had surgery that adversely affected her ability to financially support defendant Salas. (FAC, ¶10). Consequently, plaintiff Arroyo sold her residence in Palm Springs and moved into the Subject Property. (*Id.*). Defendant Arroyo's roommate moved out. (*Id.*). Due to the financial hardship, plaintiff Arroyo modified the original mortgage loan and also took a second mortgage loan. (*Id.*). Both loans remained in plaintiff Arroyo and defendant Salas's names and plaintiff Arroyo continued paying the mortgage and almost all expenses associated with the Subject Property. (*Id.*).

In 2016, plaintiff Arroyo purchased a new vehicle by making a downpayment and financing the balance. (FAC, ¶11). Since then, plaintiff Arroyo has paid the loan and all expenses associated with the vehicle. (*Id.*). Defendant Salas has not paid anything towards the vehicle. (*Id.*).

In November 2017, plaintiff Arroyo gave \$120,000.00 to defendant Salas asking him to keep it in a Certificate of Deposit ("CD") account which he did. (FAC, ¶12). In 2019, defendant Salas withdrew \$8,000.00 from the CD account without plaintiff Arroyo's knowledge and consent. (*Id.*).

In 2019, worried something could happen to her, plaintiff Arroyo executed, but did not record, a quitclaim deed to the Subject Property to defendant Salas and added defendant Salas's name to the vehicle's title. (FAC, ¶13).

¹ On July 20, 2026, the court issued an order granting plaintiff Emilia Arroyo leave to file a second amended complaint. As of July 22, 2026, plaintiff Arroyo has not yet done so. Plaintiff Arroyo's first amended complaint remains the operative pleading.